

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1429

BY FINANCE COMMITTEE

AN ACT

RELATING TO THE APPROPRIATION TO DEPARTMENT OF HEALTH AND WELFARE; APPROPRIATING ADDITIONAL MONEYS TO THE DEPARTMENT OF HEALTH AND WELFARE FOR THE DIVISIONS OF SUBSTANCE ABUSE TREATMENT AND PREVENTION, MENTAL HEALTH SERVICES, AND PSYCHIATRIC HOSPITALIZATION FOR FISCAL YEAR 2027; REDUCING THE APPROPRIATION TO THE DEPARTMENT OF HEALTH AND WELFARE FOR THE DIVISIONS OF SUBSTANCE ABUSE TREATMENT AND PREVENTION, MENTAL HEALTH SERVICES, AND PSYCHIATRIC HOSPITALIZATION FOR FISCAL YEAR 2027; AUTHORIZING ADDITIONAL FULL-TIME EQUIVALENT POSITIONS FOR THE DIVISION OF MENTAL HEALTH SERVICES; PROVIDING A TRANSFER LIMITATION EXEMPTION FOR MENTAL HEALTH SERVICES AND PSYCHIATRIC HOSPITALIZATION; REQUIRING A REPORT ON THE IDAHO BEHAVIORAL HEALTH PLAN; PROVIDING FOR CONDITIONS, LIMITATIONS, AND RESTRICTIONS; APPROPRIATING ADDITIONAL MONEYS TO THE DEPARTMENT OF HEALTH AND WELFARE FOR THE DIVISION OF PSYCHIATRIC HOSPITALIZATION FOR FISCAL YEAR 2026; REDUCING THE APPROPRIATION TO THE DEPARTMENT OF HEALTH AND WELFARE FOR THE DIVISION OF PSYCHIATRIC HOSPITALIZATION FOR FISCAL YEAR 2026; AND DECLARING AN EMERGENCY AND PROVIDING EFFECTIVE DATES.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. In addition to any other appropriation provided by law, there is hereby appropriated to the Department of Health and Welfare the following amounts to be expended according to the designated programs and expense classes from the listed funds for the period July 1, 2026, through June 30, 2027:

	FOR PERSONNEL COSTS	FOR OPERATING EXPENDITURES	FOR CAPITAL OUTLAY	FOR TRUSTEE AND BENEFIT PAYMENTS	TOTAL
I. SUBSTANCE ABUSE TREATMENT & PREVENTION:					
FROM:					
Cooperative Welfare (Dedicated)					
Fund	\$533,900			\$116,100	\$650,000
II. MENTAL HEALTH SERVICES:					
A. CHILDREN'S MENTAL HEALTH:					
FROM:					
Cooperative Welfare (General)					
Fund	\$840,900			\$2,505,200	\$3,346,100

		FOR	FOR	FOR	FOR	
	PERSONNEL	OPERATING	CAPITAL	TRUSTEE AND		
	COSTS	EXPENDITURES	OUTLAY	BENEFIT	PAYMENTS	TOTAL
5	Cooperative Welfare (Federal)					
6	Fund	<u>1,055,100</u>	<u>\$266,500</u>		<u>1,780,700</u>	<u>3,102,300</u>
7	TOTAL	\$1,896,000	\$266,500		\$4,285,900	\$6,448,400
8	B. ADULT MENTAL HEALTH:					
9	FROM:					
10	Cooperative Welfare (General)					
11	Fund	\$134,000	\$100,000		\$351,800	\$585,800
12	State-Directed Opioid Settlement					
13	Fund	<u>0</u>	<u>0</u>		<u>992,600</u>	<u>992,600</u>
14	TOTAL	\$134,000	\$100,000		\$1,344,400	\$1,578,400
15	DIVISION TOTAL	\$2,030,000	\$366,500		\$5,630,300	\$8,026,800
16	III. PSYCHIATRIC HOSPITALIZATION:					
17	A. STATE HOSPITAL NORTH:					
18	FROM:					
19	Cooperative Welfare (Dedicated)					
20	Fund	\$1,136,600	\$441,400	\$95,000	\$126,300	\$1,799,300
21	State Hospital North Endowment Income					
22	Fund	<u>0</u>	<u>212,900</u>	<u>0</u>	<u>0</u>	<u>212,900</u>
23	TOTAL	\$1,136,600	\$654,300	\$95,000	\$126,300	\$2,012,200
24	B. STATE HOSPITAL SOUTH:					
25	FROM:					
26	Cooperative Welfare (Dedicated)					
27	Fund	\$5,540,500				\$5,540,500
28	Mental Hospital Endowment Income					
29	Fund	<u>0</u>		<u>\$216,100</u>		<u>216,100</u>
30	TOTAL	\$5,540,500		\$216,100		\$5,756,600
31	DIVISION TOTAL	\$6,677,100	\$654,300	\$311,100	\$126,300	\$7,768,800
32	GRAND TOTAL	\$9,241,000	\$1,020,800	\$311,100	\$5,872,700	\$16,445,600

SECTION 2. Notwithstanding any other provision of law to the contrary, the appropriation made to the Department of Health and Welfare is hereby reduced by the following amounts from the designated programs and expense

1 classes from the listed funds for the period July 1, 2026, through June 30,
2 2027:

	FOR PERSONNEL COSTS	FOR OPERATING EXPENDITURES	FOR TRUSTEE AND BENEFIT PAYMENTS	TOTAL
7 I. SUBSTANCE ABUSE TREATMENT & PREVENTION:				
8 FROM:				
9 Liquor Control				
10 Fund	\$533,900		\$116,100	\$650,000
11 II. MENTAL HEALTH SERVICES:				
12 A. CHILDREN'S MENTAL HEALTH:				
13 FROM:				
14 Cooperative Welfare (General)				
15 Fund		\$288,400		\$288,400
16 B. ADULT MENTAL HEALTH:				
17 FROM:				
18 Cooperative Welfare (General)				
19 Fund			\$496,300	\$496,300
20 DIVISION TOTAL		\$288,400	\$496,300	\$784,700
21 III. PSYCHIATRIC HOSPITALIZATION:				
22 A. STATE HOSPITAL NORTH:				
23 FROM:				
24 Cooperative Welfare (General)				
25 Fund		\$212,900		\$212,900
26 Cooperative Welfare (Federal)				
27 Fund	<u>\$1,699,300</u>	<u>0</u>		<u>1,699,300</u>
28 TOTAL	\$1,699,300	\$212,900		\$1,912,200
29 B. STATE HOSPITAL SOUTH:				
30 FROM:				
31 Mental Hospital Endowment Income				
32 Fund	\$43,900			\$43,900

		FOR			
		FOR	FOR	TRUSTEE AND	
		PERSONNEL	OPERATING	BENEFIT	
		COSTS	EXPENDITURES	PAYMENTS	TOTAL
5	Cooperative Welfare (Federal)				
6	Fund	<u>5,496,600</u>			<u>5,496,600</u>
7	TOTAL	\$5,540,500			\$5,540,500
8	DIVISION TOTAL	\$7,239,800	\$212,900		\$7,452,700
9	GRAND TOTAL	\$7,773,700	\$501,300	\$612,400	\$8,887,400

10 SECTION 3. FTP AUTHORIZATION. In addition to any other authorization
 11 provided by law, the full-time equivalent position authorization provided
 12 to the Department of Health and Welfare for the Mental Health Services Di-
 13 vision is hereby increased by fifteen (15.00) for the period July 1, 2026,
 14 through June 30, 2027.

15 SECTION 4. TRANSFER LIMITATION EXEMPTION. Notwithstanding any other
 16 provisions of law to the contrary, the Department of Health and Welfare Divi-
 17 sion of Mental Health Services and Division of Psychiatric Hospitalization
 18 may transfer moneys appropriated for personnel costs and trustee and bene-
 19 fit payments pursuant to Section 67-3511, Idaho Code, for the period July 1,
 20 2026, through June 30, 2027.

21 SECTION 5. REQUIRING A REPORT ON THE IDAHO BEHAVIORAL HEALTH PLAN. The
 22 Department of Health and Welfare Division of Mental Health Services shall
 23 provide a report on fiscal year 2025 and fiscal year 2026 expenditures for
 24 the Idaho Behavioral Health Plan. The report shall include actual expendi-
 25 tures for services provided to the adults' population and services provided
 26 to the children's population under the Idaho Behavioral Health Plan. The
 27 format of the report and the type of information included therein shall be
 28 determined by the Legislative Services Office Budget and Policy Analysis Di-
 29 vision. The report shall be submitted to the Joint Finance-Appropriations
 30 Committee and the Legislative Services Office Budget and Policy Analysis Di-
 31 vision no later than December 1, 2026.

32 SECTION 6. CONDITIONS, LIMITATIONS, AND RESTRICTIONS. Appropriations
 33 made pursuant to this act are subject to the conditions, limitations, and re-
 34 strictions specified in this act.

35 SECTION 7. In addition to the appropriation made in Section 1, Chap-
 36 ter 209, Laws of 2025, and any other appropriation provided by law, there is
 37 hereby appropriated to the Department of Health and Welfare for the Division
 38 of Psychiatric Hospitalization the following amounts to be expended accord-
 39 ing to the designated programs and expense classes from the Cooperative Wel-
 40 fare (Dedicated) Fund for the period July 1, 2025, through June 30, 2026:

	FOR PERSONNEL COSTS	FOR OPERATING EXPENDITURES	FOR TRUSTEE AND BENEFIT PAYMENTS	TOTAL
State Hospital North	\$700,000	\$436,400	\$46,000	\$1,182,400
State Hospital South	<u>4,871,600</u>	<u>0</u>	<u>0</u>	<u>4,871,600</u>
TOTAL	\$5,571,600	\$436,400	\$46,000	\$6,054,000

SECTION 8. Notwithstanding any other provision of law to the contrary, the appropriation made to the Department of Health and Welfare in Section 1, Chapter 209, Laws of 2025, is hereby reduced by the following amounts for the Division of Psychiatric Hospitalization from the designated programs from personnel costs from the Cooperative Welfare (Federal) Fund for the period July 1, 2025, through June 30, 2026:

State Hospital North	\$1,182,400
State Hospital South	<u>4,871,600</u>
TOTAL	\$6,054,000

SECTION 9. An emergency existing therefor, which emergency is hereby declared to exist, Sections 7 and 8 of this act shall be in full force and effect on and after passage and approval, and Sections 1 through 6 of this act shall be in full force and effect on and after July 1, 2026.